

ORDINANCE NO. A 31

TOWN OF DECATUR, MISSISSIPPI

**AN ORDINANCE TO PUTTING IN EFFECT THE ZONING
ORDINANCE AS PASSED BY THE MAYOR AND BOARD
OF ALDERMEN MARCH 6, 2001**

It appears and is so found that the Mayor and Board of Aldermen on March 6, 2001, passed a Zoning Ordinance as provided by Miss. Code Ann., Section 17-1-1 through Section 17-1-39, 1972.

It further appears unto the Mayor and the Board of Aldermen of the Town of Decatur, has complied with all other requirements of law with reference to giving notice and a right of hearing or protest by property owners as set for 2:00 o'clock p.m. on April 2, 2001;

It further appears unto the Mayor and Board of Aldermen that no one appeared at 2:00 o'clock p.m. on April 2, 2001 to protest;

Therefore, be it ordained by the Mayor and Board of Aldermen of the Town of Decatur, Mississippi:

That no protest being filed and that the said Zoning Ordinance passed on March 6, 2001, be and the same is hereby made effective as this date, April 3, 2001.

ZONING ORDINANCE A 31

TOWN OF DECATUR, MISSISSIPPI

AMMENDED FEBRUARY 3, 2015

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Therefore, be it ordained by the Mayor and the Board of Aldermen of the Town of Decatur, Mississippi:

That no protest being filed and that the said Zoning Ordinance passed on March 6, 2001, be and the same is hereby made effective as this date, April 3, 2001.

1. Rear Yards - There shall be a minimum rear yard setback of not less than 30 feet except where the rear yard abuts any street or road, including those shown on the Town of Decatur Major Thoroughfare Plan, in which case the rear yard shall be 30 feet.
2. Yards for Public or Semi-Public Buildings - All public or semipublic buildings, including accessory buildings, shall provide the same front yard as required for all other buildings in this zone. There shall be a minimum side yard and rear yard setback of 30 feet from any lot line.

406.130 B-R: Rural Residential (Adopted 02/03/2015)

406.131 Purpose--The purpose of this zone promotes low-density residential development consistent with an urban-rural character. This zone will allow hobby farming and the hobby rearing of livestock and poultry, but will be restrictive of large commercial livestock/poultry operations. This zone maintains the town of Decatur's heritage as a rural community, yet provides restrictions consistent with being in a sprawling urban community. This zone will generally be located in areas provided with limited public utilities and services, particularly a lack of town sewer services.

406.132 Uses Permitted

1. Single-family dwellings, farm and agricultural structures.

2. Limited agricultural production of common farm products or raw materials such as cotton, vegetables, fruit, trees, grain and acceptable animals as listed below:
 - a. Horses
 - b. Cattle,
 - c. Donkey,
 - d. Mules,
 - e. Goats,
 - f. Sheep, and
 - g. Poultry

No permits shall be required with reference to land used for the agricultural production.

3. Animal numbers shall be limited to the maximum that can be reasonably supported with the available land using accepted Mississippi State Extension Services guidelines.
4. Public uses necessary for conducting the business of operating the City, County, State and/or federal government, including Parks and recreational facilities, schools and utilities.
5. Private Utilities including Electric Power Co-ops, Water Companies, Gas Companies, etc.
6. Churches and accessory religious buildings.
7. Uses by temporary permit.

406.133 Building Height-No structures shall exceed 45 feet in height.

406.134 Required Lot Area and Lot Width-every dwelling shall be located on a single lot of not less than 43,560 square feet (one acre) and have a width determined at the building setback line of 150 feet.

If the Town does not provide sewer services to the property, the property owner needs to contact the Mississippi Dept. of Health to determine soil adequacy or the adequate lot size to support sewer treatment facilities.

406.135 Percentage of Lot Coverage Buildings, including accessory structures, shall not cover more than 60 percent of the area of any lot.

406.136 Yards Required

1. Front Yards-The front yard building set back line shall be a minimum of 40 feet from the existing or proposed right-of-way line of any street or road, including those shown on the Town of Decatur Major Thoroughfare Plan.
2. Side Yards-There shall be a minimum side yard of 20 feet on each side of any structure, measured from the side lot line to the nearest road, including those shown on the Town of Decatur Major Thoroughfare Plan.
3. Rear Yards-- There shall be a minimum rear yard setback of not less than 40 feet except where the rear yard abuts any street or road, including those shown on the Town of Decatur Major Thoroughfare Plan, in which case the rear yard shall be 30 feet.

4. Yards for Public or Semi-Public Buildings-All public and semi-public buildings, including accessory buildings, shall provide the same front yard as required for all other buildings in the zone. There shall be a minimum side yard and rear yard setback of 30 feet from any lot line.